

Vendor Non-Disclosure Agreement

Mutual Confidentiality Agreement — Vendor / Supplier Template
Northstar Cloud Systems, Inc. | Effective Date: January 1, 2026 | Template Rev. 4

This Non-Disclosure Agreement (“Agreement”) is entered into as of the date of last signature (“Effective Date”) between Northstar Cloud Systems, Inc., a Delaware corporation with its principal place of business at 400 Harbor View Drive, Suite 900, San Francisco, CA (“Northstar”), and the vendor or supplier identified in the applicable signature block (“Vendor”). Northstar and Vendor are sometimes referred to individually as a “Party” and collectively as the “Parties.”

The Parties anticipate disclosing certain confidential and proprietary information to one another in connection with a potential or ongoing business relationship involving the evaluation, provision, or support of products or services (the “Purpose”). In consideration of the mutual promises contained herein, the Parties agree as follows.

1. Definition of Confidential Information

“Confidential Information” means non-public information disclosed by either Party (the “Disclosing Party”) to the other (the “Receiving Party”), whether orally, in writing, or by inspection, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information includes, without limitation: business plans and product roadmaps; source code, system architecture, and technical documentation; security information, including vulnerability reports and incident data; and customer lists and customer information.

Confidential Information does not include information that: (a) is or becomes generally available to the public through no act or omission of the Receiving Party; (b) was in the Receiving Party’s possession prior to disclosure by the Disclosing Party, as shown by contemporaneous written records; (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party’s Confidential Information; or (d) is rightfully obtained by the Receiving Party from a third party without restriction and without breach of any obligation of confidentiality.

2. Permitted Use and Need-to-Know Disclosure

The Receiving Party shall use Confidential Information solely for the Purpose and shall not use it for any competitive purpose or for the benefit of any party other than the Disclosing Party. The Receiving Party may disclose Confidential Information to its employees, contractors, and professional advisers who have a legitimate need to know such information for the Purpose, provided that each such person is bound by confidentiality obligations at least as protective of the Disclosing Party as those contained in this Agreement. The Receiving Party remains responsible for any breach of this Agreement caused by such persons.

3. Security Safeguards and Incident Notification

The Receiving Party shall protect Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar importance, and in no event less than a reasonable degree of care, including reasonable administrative, technical, and physical safeguards designed to prevent unauthorized access, use, alteration, or disclosure.

If the Receiving Party becomes aware of any actual or reasonably suspected unauthorized access to, or disclosure of, the Disclosing Party’s Confidential Information, the Receiving Party shall notify the Disclosing Party in writing as soon as reasonably practicable, and in any event within five (5) business

days of discovery. The notice shall describe the nature of the incident to the extent then known and the corrective action taken or planned. The Receiving Party shall reasonably cooperate with the Disclosing Party's investigation of the incident at the Disclosing Party's expense.

4. Compelled Disclosure

The Receiving Party may disclose Confidential Information to the extent required by law, regulation, or valid legal process, provided that, where legally permitted, the Receiving Party gives the Disclosing Party prompt written notice of the requirement prior to disclosure so that the Disclosing Party may seek a protective order or other appropriate remedy, and the Receiving Party discloses only the portion of Confidential Information that it is legally required to disclose.

5. Return or Destruction of Confidential Information

Upon the Disclosing Party's written request, or upon termination of the business relationship giving rise to this Agreement, the Receiving Party shall promptly return or, at the Disclosing Party's election, securely destroy all Confidential Information in its possession, including copies and derivative materials, except that the Receiving Party may retain copies to the extent required by applicable law, regulation, or its bona fide document retention policy, subject to the continuing confidentiality obligations of this Agreement.

6. Duration of Confidentiality Obligations

This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The confidentiality obligations set forth herein shall survive termination or expiration of this Agreement and shall continue to bind the Receiving Party for a period of two (2) years following such termination or expiration, after which the Receiving Party's obligations with respect to Confidential Information disclosed under this Agreement shall lapse, except with respect to Confidential Information that constitutes a trade secret under applicable law, which shall remain protected for so long as it continues to qualify as a trade secret.

7. No License; No Obligation to Proceed

Nothing in this Agreement grants the Receiving Party any license, ownership interest, or other right in the Disclosing Party's Confidential Information, other than the limited right to use it for the Purpose. Neither Party is obligated by this Agreement to enter into any further business relationship, and either Party may terminate discussions related to the Purpose at any time and for any reason.

8. Remedies

Each Party acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages would be an inadequate remedy, and agrees that the non-breaching Party shall be entitled to seek injunctive relief, specific performance, and any other equitable remedy available under applicable law, in addition to any other remedies available at law, without the necessity of posting a bond.

9. Representations and Warranties

Each Party represents and warrants that it has the right to disclose the Confidential Information it discloses under this Agreement and that such disclosure does not violate any obligation owed to a third party. Confidential Information is provided "as is," and neither Party makes any warranty regarding the accuracy or completeness of the Confidential Information it discloses.

10. Assignment

Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets, provided the assignee agrees in writing to be bound by the terms of this Agreement.

11. Governing Law and Venue

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Delaware for any dispute arising out of or relating to this Agreement.

12. Independent Contractors

The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.

13. Severability; Entire Agreement; Amendment

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to make it enforceable while preserving its intent. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions and understandings relating thereto. This Agreement may be amended only by a written instrument signed by both Parties.

14. Publicity

Neither Party will use the other Party's name, logo, or trademarks in any publicity, advertising, or news release relating to this Agreement or the Purpose without the prior written consent of the other Party, except that each Party may disclose the existence of this Agreement to its professional advisers and, where required, to actual or prospective investors or acquirers under obligations of confidentiality.

15. Export Control

Each Party will comply with all applicable export control and economic sanctions laws and regulations in connection with any Confidential Information disclosed under this Agreement, and will not export, re-export, or transfer any Confidential Information in violation of such laws, including to any individual, entity, or country subject to applicable trade restrictions.

16. Feedback

If the Receiving Party voluntarily provides the Disclosing Party with suggestions, ideas, or other feedback regarding the Disclosing Party's products or services in connection with the Purpose, the Disclosing Party may use such feedback without restriction or obligation, provided that the Disclosing Party does not identify the Receiving Party as the source of the feedback without the Receiving Party's consent.

17. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party will knowingly solicit for employment any employee of the other Party who was directly involved in activities under the Purpose, provided that this restriction does not apply to general solicitations not specifically directed at such employees, or to any employee who responds to such a general solicitation.

18. Notices

All notices under this Agreement must be in writing and delivered by email with confirmation of receipt, by nationally recognized courier, or by certified mail, to the address or email address specified in the applicable signature block, or to such other address as a Party designates in writing. Notice under Section 3 (security incident notification) may additionally be delivered to security@northstarcloud.example when Northstar is the Disclosing Party.

19. Counterparts

This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

20. Subcontracting and Affiliates

The Receiving Party may disclose Confidential Information to its Affiliates on the same basis as its own employees under Section 2, provided each Affiliate is bound by confidentiality obligations at least as protective as this Agreement and the Receiving Party remains responsible for any Affiliate's compliance. Where the Receiving Party engages a subcontractor that will have access to Confidential Information in connection with the Purpose, the Receiving Party must first ensure the subcontractor is bound by written confidentiality obligations consistent with this Section, and must promptly notify the Disclosing Party of any subcontractor engagement involving access to Confidential Information relating to security infrastructure or customer data.

21. Signatures

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

NORTHSTAR CLOUD SYSTEMS, INC.

VENDOR

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____